

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

HMM Co., LTD. F/K/A HYUNDAI MERCHANT MARINE CO.,
LTD., *Respondent*.

DOCKET NO. 24-23

Served: July 23, 2025

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge*.

AMENDED SCHEDULING ORDER

On July 11, 2025, the parties filed a joint status report in which Respondent HMM Co., Ltd. proposed an amended schedule extending current deadlines by 60 days. Joint Status Report 8, Dkt. 31. In support of this extension, HMM states that while it has produced bills of lading and associated invoices, along with underlying service contracts, it is still in the process of searching electronically stored information (ESI) obtained from custodians in Korea for potentially responsive information and reviewing responsive information from its search of custodians in the United States. Joint Status 4-5. HMM states that the volume of information and the need to translate Korean documents, even with technology-assisted review (TAR) and AI-assisted translation, necessitates an extension. Joint Status 6.

Complainant Samsung Electronics America, Inc. (SEA) states that it “cannot agree to extending all deadlines by 60 days because a substantial production of documents remains to be made by HMM.” Joint Status 9. But while SEA appears to be farther along in its document-production process than HMM, SEA also apparently has a substantial number of documents left to review – SEA states that its search collected 5,256,808 documents (after deduplication), of which it has reviewed 776,875, or approximately 15%. Joint status 2. Perhaps there was some intermediate TAR step between deduplication and the review described in the joint status report that reduced the overall quantity of potentially responsive material, but SEA did not describe that.

Given the status of the parties’ document productions, and the fact that both parties appear to be working diligently to complete the process, I find good cause to amend the schedule as set forth below. In their next joint status report, the parties must describe: any supplemental searches conducted since the last joint status report; the volume of documents/ESI returned from those searches; the volume of documents/ESI reviewed; the volume of documents remaining to be reviewed (including quality-control and privilege review); the volume of documents/ESI produced since the last joint status report and the total volume produced; any obstacles encountered in reviewing or producing documents/ESI; anticipated number of depositions for

each party and any obstacles related to scheduling those depositions. The report may also include any other information relevant to the discovery schedule.

The parties are hereby **ORDERED** to follow this schedule:

September 5, 2025	Joint Status Report due (see above)
September 12, 2025	Complete document production
September 12, 2025	Expert-discovery phase begins
November 14, 2025	Complete depositions; discovery closed
December 3, 2025	Meeting to discuss Joint Prehearing Statement must be held by this date; hearing exhibits must be exchanged
December 31, 2025	Joint prehearing statement, objections to exhibits, and motions for confidential treatment are due
January 6, 2026	Prehearing conference to be held at 800 North Capitol Street, NW, Washington, DC at 10:30 AM

ALEX
CHINTELLA

Alex M. Chintella
Administrative Law Judge

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ALEX CHINTELLA
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